

Case of infancy.—So where A. devised certain lands to his children, some of whom were *infants*, “the same to be sold when the executors and trustees of his will should see proper, and the purchase-money to be equally and severally divided amongst his above-named children,” Sir J. Leach said, “It is plain the testator intended that the trustees should have an immediate power of sale. Some of the children were infants, and not capable of signing receipts. [*455] I must therefore *infer, that the testator meant to give to the trustees the power to sign receipts, being an authority necessary for the execution of his declared purpose” (a).

As to cestuis que trust out of the jurisdiction.—As to *cestuis que trust* who, after the date of the instrument, go out of the jurisdiction, or are otherwise incapacitated to concur, the general rule does not apply, for it cannot be said that the settlor meant the trustees to sign receipts for them, the presumption being the other way.

6. Where trust is annexed to the purchase-money it is implied that the trustee shall apply it. — *Secondly*. If a sale be directed, and the proceeds are not simply to be paid over to certain parties, but there is a *special* trust annexed, the inference is, that the settlor meant to confide the execution of the trust to the hands of the trustee, and not of the purchaser, and that the trustee therefore can sign a receipt (b).

Mr. Booth's opinion.—An opinion of Mr. Booth shows that even in his time regard was had to the nature of the trust in

(a) *Sowarsby v. Lacy*, 4 Mad. 142; *Lavender v. Stanton*, 6 Mad. 46; and see *Breedon v. Breedon*, 1 R. & M. 413; *Cuthbert v. Baker*, Sugd. Vend. & Purch. 842, 843, 11th ed.

(b) *Doran v. Wiltshire*, 3 Sw. 699; *Balfour v. Welland*, 16 Ves. 157; *Wood v. Harman*, 5 Mad. 368; *Locke v. Lomas*, 5 De G. & Sm. 326. See *Glynn v. Locke*, 3 Dr. & War. 11; *Ford v. Ryan*, 4 Ir. Ch. Rep. 342. In *Cox v. Cox*, 1 K. & J. 251, Vice-Chancellor Wood held, that a power of signing receipts was by no means one inserted as of course in legal in-

struments, but often excluded, and when excluded, was never implied, except under very special circumstances. The question in that case arose upon the construction of a will which gave to the tenant for life the like powers of selling and exchanging as were contained in a settlement referred to, and in which were, not only powers of sale and exchange, but also a power of signing receipts, and the Vice-Chancellor was of opinion that the powers of sale and exchange only, without the power of signing receipts, were incorporated by reference.